



INDIAN POLITY



LOKPAL AND LOKAYUKTAS



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MODULE – 109

LOKPAL AND LOKAYUKTAS

LOKAYUKTAS

WHAT DO YOU UNDERSTAND BY LOKAYUKTA?



In some States, Lokayuktas are already functioning; but most States even now are without a Lokayukta.

- 1 Every State shall establish a body to be known as the Lokayukta for the State, if not so established, constituted *by a law made by the State Legislature.*
- 2 If not established, they have to be established within one year from the date of the commencement of the Act.
- 3 This is as per **Section 63** of the Lokpal and Lokayuktas Act.
- 4 The establishment of Lokayukta falls within the domain of the States.

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LOKAYUKTAS

STRUCTURAL VARIATIONS



- The structure of the lokayukta is not same in all the states.
- Some States like Rajasthan, Karnataka, Andhra Pradesh and Maharashtra have created the lokayukta as well as upalokayukta, while some others like Bihar, Uttar Pradesh and Himachal Pradesh have created only the lokayukta.
- There are still other states like Punjab and Orissa that have designated officials as Lokpal. This pattern was not suggested by the ARC in the states.

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LOKAYUKTAS

APPOINTMENT



The lokayukta and upalokayukta are appointed by the governor of the state. While appointing, the governor in most of the states consults:

- The chief justice of the state high court, and
- The leader of Opposition in the state legislative assembly

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QUALIFICATIONS

- Judicial qualifications are prescribed for the lokayukta in the States of Uttar Pradesh, Himachal Pradesh, Andhra Pradesh, Gujarat, Orissa, Karnataka and Assam.
- But no specific qualifications are prescribed in the states of Bihar, Maharashtra and Rajasthan.

TENURE

In most of the states, the term of office fixed for lokayukta is of 5 years duration or 65 years of age, whichever is earlier. He is not eligible for reappointment for a second term.



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LOKAYUKTAS

JURISDICTION



There is no uniformity regarding the jurisdiction of lokayukta in all the states. The following points can be noted in this regard:

- The **Chief Minister** is included within the jurisdiction of lokayukta in the states of Himachal Pradesh, Andhra Pradesh, Madhya Pradesh and Gujarat, while he is excluded from the purview of lokayukta in the states of Maharashtra, Uttar Pradesh, Rajasthan, Bihar and Orissa.
- **Ministers and higher civil servants** are included in the purview of lokayukta in almost all the states. Maharashtra has also included **former ministers and civil servants**.

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INVESTIGATIONS



- In most of the states, the lokayukta can initiate investigations either on the basis of a complaint received from the citizen against unfair administrative action or suo moto.
- But he does not enjoy the power to start investigations on his own initiative (suo moto) in the States of Uttar Pradesh, Himachal Pradesh and Assam.

LOKPAL AND LOKAYUKTAS

LOKAYUKTAS

OTHER FEATURES



LOKAYUKTA



CORRUPTION

- The lokayukta presents, annually, to the **governor of the state** a consolidated report on his performance.
- The governor places this report along with an explanatory memorandum before the state legislature.
- The lokayukta is responsible to the state legislature.
- He takes the help of the state investigating agencies for conducting inquiries.
- He can call for relevant files and documents from the state government departments.
- The recommendations made by the lokayukta are **only advisory and not binding on the state government**.

The 97th Constitutional Amendment Act of 2011 gave a constitutional status and protection to co-operative societies. In this context, it made the following three changes in the constitution:

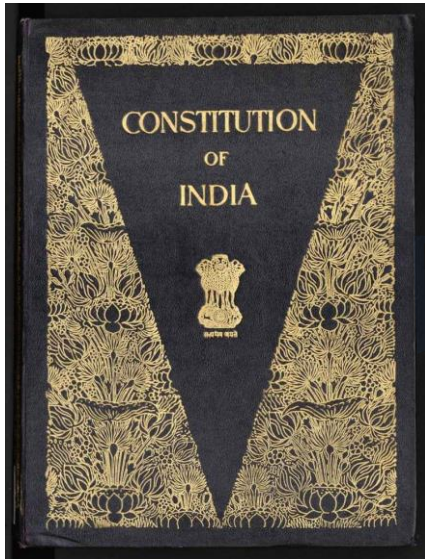


- It made the right to form co-operative societies a **fundamental right** (Article 19).
- It included a **new Directive Principle of State Policy** on promotion of co-operative societies (Article 43-B).
- It added a **new Part IX-B** in the Constitution which is entitled “The Co-operative Societies” (Articles 243-ZH to 243-ZT).

CO-OPERATIVE SOCIETIES

CONSTITUTIONAL PROVISIONS

Part IX-B of the constitution contains the following provisions with respect to the co-operative societies



1

Incorporation of Co-operative Societies:

The state legislature may make provisions for the incorporation, regulation and winding-up of co-operative societies.

CO-OPERATIVE SOCIETIES

CONSTITUTIONAL PROVISIONS

2

Number and Term of Members of Board and its Office Bearers:

- The board shall consist of such number of directors as may be provided by the state legislature.
- But, the maximum number of directors of a co-operative society shall **not exceed twenty-one**.
- The state legislature shall provide for the **reservation of one seat** for the Scheduled Castes or the Scheduled Tribes and **two seats** for women on the board of every co-operative society having members from such a category of persons.

- The term of office of elected members of the board and its office bearers shall be **five years** from the date of election.
- The state legislature shall make provisions for **co-option of persons** having experience in the field of banking, management, finance or specialisation in any other related field, as members of the board.
- But, the number of such co-opted members shall not exceed two (in addition to twenty-one directors).
- Further, **the co-opted members shall not have the right to vote in any election** of the co-operative society or be eligible to be elected as office bearers of the board.

CO-OPERATIVE SOCIETIES

CONSTITUTIONAL PROVISIONS



3

Election of Members of Board:

- The election of a board shall be conducted before the expiry of the term of the board so as to ensure that the newly elected members assume office immediately on the expiry of the term of the office of members of the outgoing board.
- The superintendence, direction and control of the preparation of electoral rolls and the conduct of elections to a co-operative society shall vest in such body, as may be provided by the state legislature.

CO-OPERATIVE SOCIETIES

CONSTITUTIONAL PROVISIONS



4

Supersession and Suspension of Board and Interim Management:

No board shall be superseded or kept under suspension for a period **exceeding six months**. The board may be superseded or kept under suspension in case

- i. Of its persistent default.
- ii. Of negligence in the performance of its duties
- iii. Of committing any act prejudicial to the interests of the co-operative society or its members
- iv. Of there being a stalemate in the constitution or functions of the board
- v. Of the election body having failed to conduct elections in accordance with the provisions of the State Act.

CO-OPERATIVE SOCIETIES

CONSTITUTIONAL PROVISIONS

5

Audit of Accounts of Co-operative Societies:

- The state legislature may make provisions for the maintenance of accounts by the co-operative societies and the auditing of such accounts at least once in each financial year.
- It shall lay down the **minimum qualifications and experience of auditors** and auditing firms that shall be eligible for auditing the accounts of the co-operative societies.
- Every co-operative society shall be audited by an **auditor or auditing firm, appointed by the general body of the co-operative society.**
- But, such an auditor or auditing firm shall be appointed from a panel approved by the State Government or a body authorised by the State Government on this behalf.

- The audit report of the accounts of an apex co-operative society shall be laid before the state legislature.



CO-OPERATIVE SOCIETIES

CONSTITUTIONAL PROVISIONS

6 Convening of General Body Meetings:

The state legislature may provide that the annual general body meeting of every co-operative society shall be convened within a **period of six months** of the close of the financial year.



7 Right of a Member to Get Information:

The state legislature may provide for access to every member of a co-operative society to the **books, information and accounts** of the co-operative society.



CO-OPERATIVE SOCIETIES

CONSTITUTIONAL PROVISIONS

8 Returns:

Every co-operative society shall file returns, **within six months of the close of every financial year**, to the authority designated by the State Government.



9 Offences and Penalties:

The state legislature may make provisions for the offences relating to the co-operative societies and penalties for such offences.



CO-OPERATIVE SOCIETIES

CONSTITUTIONAL PROVISIONS



10 Application to Multi-state Co-operative Societies:

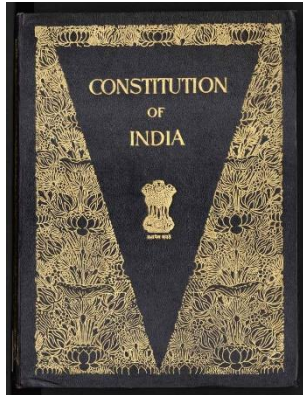
The provisions of this part shall apply to the multi-state co-operative societies subject to the modification that any reference to the “State Legislature”, “State Act” or “State Government” shall be construed as a reference to “Parliament”, “Central Act” or “Central Government” respectively.

CO-OPERATIVE SOCIETIES

CONSTITUTIONAL PROVISIONS

11 Application to Union Territories:

The provisions of this part shall apply to the Union territories. But, the President may direct that the provisions of this part shall not apply to any Union territory or part thereof as he may specify in the notification.



12 Continuance of Existing Laws:

Any provision of any law relating to co-operative societies in force in a state immediately before the commencement of the Constitution (Ninety-seventh Amendment) Act, 2011, which is inconsistent with the provisions of this part, shall continue to be in force until amended or repealed or until the expiration of one year from such commencement, whichever is less.

CO-OPERATIVE SOCIETIES

REASONS FOR THE 97TH AMENDMENT



- 1 The co-operative sector, over the years, has made significant contribution to various sectors of national economy and has achieved voluminous growth.

- 2 However, it has shown **weaknesses in safeguarding the interests** of the members and fulfilment of objects for which these institutions were organised.

- 3 There have been instances where **elections have been postponed indefinitely** and nominated office bearers or administrators have remained in-charge of these institutions for a long time.

- 4 This **reduces the accountability** in the management of co-operative societies to their members.

REASONS FOR THE 97TH AMENDMENT



5 Inadequate professionalism in management in many of the co-operative institutions has led to poor services and low productivity.

6 The “co-operative societies” is a subject enumerated in Entry 32 of the state list of the Seventh Schedule of the Constitution and the state legislatures have accordingly enacted legislations on co-operative societies.

7 It has, however, been experienced that in spite of considerable expansion of co-operatives, their performance in qualitative terms has not been up to the desired level.

8 A strong need has been felt for amending the Constitution so as to keep the co-operatives free from unnecessary outside interferences and also to ensure their autonomous organisational set up and their democratic functioning.

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